

1 ENGROSSED SENATE
2 BILL NO. 933

By: Stanley of the Senate

3 and

4 Stark of the House
5

6 An Act relating to health care; creating the Right to
7 Try for Individualized Treatments Act; providing
8 short title; defining terms; authorizing
9 individualized investigational treatments for
10 eligible patients; making act voluntary for
11 manufacturers; providing certain authorities to
12 eligible facilities; limiting effect of act; making
13 coverage voluntary for payors; granting certain
14 immunities from civil liability; granting certain
15 protections to health care providers; prohibiting
16 certain acts by state entities; providing for
17 codification; and providing an effective date.
18

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 3092.1 of Title 63, unless there
22 is created a duplication in numbering, reads as follows:

23 This act shall be known and may be cited as the "Right to Try
24 for Individualized Treatments Act".

SECTION 2. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 3092.2 of Title 63, unless there
is created a duplication in numbering, reads as follows:

As used in this act:

1 1. "Eligible facility" means an institution that is operating
2 under a Federalwide Assurance (FWA) for the Protection of Human
3 Subjects under 42 U.S.C., Section 289(a) and 45 C.F.R., Part 46. An
4 eligible facility is subject to the FWA laws, regulations, policies,
5 and guidelines including renewals or updates;

6 2. "Eligible patient" means an individual who meets all of the
7 following conditions:

- 8 a. has a life-threatening or severely debilitating
9 illness, attested to by the patient's treating
10 physician,
- 11 b. has considered all other treatment options currently
12 approved by the United States Food and Drug
13 Administration,
- 14 c. has received a recommendation from his or her
15 physician for an individualized investigational
16 treatment, based on analysis of the patient's genomic
17 sequence, human chromosomes, deoxyribonucleic acid,
18 ribonucleic acid, genes, gene products such as enzymes
19 and other types of proteins, or metabolites,
- 20 d. has given written, informed consent for the use of the
21 individualized investigational treatment, and
- 22 e. has documentation from his or her physician that he or
23 she meets the requirements of this paragraph;

1 3. "Individualized investigational treatment" means drugs,
2 biological products, or devices that are unique to and produced
3 exclusively for use for an individual patient, based on the
4 patient's own genetic profile. Individualized investigational
5 treatment includes, but is not limited to, individualized gene
6 therapy antisense oligonucleotides (ASO) and individualized
7 neoantigen vaccines; and

8 4. "Written, informed consent" means a written document that is
9 signed by the patient; parent, if the patient is a minor; legal
10 guardian; or patient advocate designated by the patient, and
11 attested to by the patient's physician and a witness and that, at a
12 minimum, includes:

- 13 a. an explanation of the currently approved products and
14 treatments for the disease or condition from which the
15 patient suffers,
- 16 b. an attestation that the patient concurs with his or
17 her physician in believing that all currently approved
18 and conventionally recognized treatments are unlikely
19 to prolong the patient's life,
- 20 c. clear identification of the specific proposed
21 individualized investigational treatment that the
22 patient is seeking to use,
- 23 d. a description of the potentially best and worst
24 outcomes of using the individualized investigational

1 treatment and a realistic description of the most
2 likely outcome. The description shall include the
3 possibility that new, unanticipated, different, or
4 worse symptoms might result and that death could be
5 hastened by the proposed treatment. The description
6 shall be based on the physician's knowledge of the
7 proposed treatment in conjunction with an awareness of
8 the patient's condition,

9 e. a statement that the patient's health plan or third-
10 party administrator and provider are not obligated to
11 pay for any care or treatments consequent to the use
12 of the individualized investigational treatment,
13 unless specifically required by law or contract,

14 f. a statement that the patient's eligibility for hospice
15 care may be withdrawn if the patient begins curative
16 treatment with the individualized investigational
17 treatment and that care may be reinstated if this
18 treatment ends and the patient meets hospice
19 eligibility requirements, and

20 g. a statement that the patient understands that he or
21 she is liable for all expenses consequent to the use
22 of the individualized investigational treatment and
23 that this liability extends to the patient's estate,
24 unless a contract between the patient and the

1 manufacturer of the individualized investigational
2 treatment states otherwise.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 3092.3 of Title 63, unless there
5 is created a duplication in numbering, reads as follows:

6 A. A manufacturer operating within an eligible facility and
7 pursuant to all applicable Federalwide Assurance (FWA) laws and
8 regulations may make available an individualized investigational
9 treatment and an eligible patient may request an individualized
10 investigational treatment from an eligible facility or manufacturer
11 operating within an eligible facility under this act. This act does
12 not require that a manufacturer make available an individualized
13 investigational treatment to an eligible patient.

14 B. An eligible facility or manufacturer operating within an
15 eligible facility may:

16 1. Provide an individualized investigational treatment to an
17 eligible patient without receiving compensation; and

18 2. Require an eligible patient to pay the costs of, or the
19 costs associated with, the manufacture of the individualized
20 investigational treatment.

21 SECTION 4. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 3092.4 of Title 63, unless there
23 is created a duplication in numbering, reads as follows:

24 A. This act does not:

1 1. Expand the coverage required of an insurer under the
2 Oklahoma Insurance Code;

3 2. Require any governmental agency to pay costs associated with
4 the use, care, or treatment of a patient with an individualized
5 investigational treatment;

6 3. Require a hospital or facility licensed by this state to
7 provide new or additional services, unless approved by the hospital
8 or facility; or

9 4. Affect any mandatory health care coverage for participation
10 in clinical trials under the Oklahoma Insurance Code.

11 B. A health plan, third-party administrator, or governmental
12 agency may, but is not required to, provide coverage for the cost of
13 an individualized investigational treatment, or the cost of services
14 related to the use of an individualized investigational treatment
15 under this act.

16 SECTION 5. NEW LAW A new section of law to be codified
17 in the Oklahoma Statutes as Section 3092.5 of Title 63, unless there
18 is created a duplication in numbering, reads as follows:

19 A. If a patient dies while being treated by an individualized
20 investigational treatment, the patient's heirs are not liable for
21 any outstanding debt related to the treatment or lack of insurance
22 due to the treatment.

23 B. This act does not create a private cause of action against a
24 manufacturer of an individualized investigational treatment or

1 against any other person or entity involved in the care of an
2 eligible patient using the individualized investigational treatment
3 for any harm done to the eligible patient resulting from the
4 individualized investigational treatment, if the manufacturer or
5 other person or entity is complying in good faith with the terms of
6 this act and has exercised reasonable care.

7 SECTION 6. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 3092.6 of Title 63, unless there
9 is created a duplication in numbering, reads as follows:

10 A. A licensing board shall not revoke, fail to renew, suspend,
11 or take any action against a health care provider's license based
12 solely on the health care provider's recommendations to an eligible
13 patient regarding access to or treatment with an individualized
14 investigational treatment. An entity responsible for Medicare
15 certification shall not take action against a health care provider's
16 Medicare certification based solely on the health care provider's
17 recommendation that a patient have access to an individualized
18 investigational treatment.

19 B. An official, employee, or agent of this state shall not
20 block or attempt to block an eligible patient's access to an
21 individualized investigational treatment. Counseling, advice, or a
22 recommendation consistent with medical standards of care from a
23 licensed health care provider is not a violation of this subsection.

24 SECTION 7. This act shall become effective November 1, 2026.

1 Passed the Senate the 10th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives